

The Demurrer to the Fifteenth Cause of Action is overruled.

Conclusion

The **Demurrer is overruled in its entirety.**

Defendants must file their Answer within 15 days of service of notice of entry of this order.

7. 9:00 AM CASE NUMBER: C24-03509
CASE NAME: AJ JACKSON VS. ANTIOCH UNIFIED SCHOOL DISTRICT
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: ANTIOCH UNIFIED SCHOOL DISTRICT
TENTATIVE RULING:

Defendant Antioch Unified School District's Demurrer to Plaintiff AJ Jackson's First Amended Complaint ("FAC") is **sustained without leave to amend**. Defendant shall prepare and submit a proposed order and file and serve notice of entry of order.

Background

Plaintiff AJ Jackson, a minor, by and through his Guardian Ad Litem Chablis McDuffie, alleges that on January 1, 2024, while attending Carmen Dragon Elementary, he was physically assaulted by other students while under the custody, control, and care of District employees. (FAC ¶¶ 12-13.) Plaintiff alleges that District staff "failed [to] take appropriate action" to protect him. (*Id.* ¶ 13.) Plaintiff seeks to hold the District vicariously liable for the negligence of its employees under Government Code section 815.2, and further alleges the District owed him a mandatory duty of supervision under Education Code section 44807 and California Code of Regulations, title 5, section 552. (*Id.* ¶¶ 14-19.)

Plaintiff alleges that a government claim was served on the District pursuant to Government Code section 911.2 and has not been rejected. (*Id.* ¶¶ 8-9.) Plaintiff further alleges the claim was mailed on or about June 26, 2024, via USPS certified mail, to the District's principal office at 510 G Street, Antioch, California, and was delivered on June 28, 2024. (*Id.* ¶¶ 9(a)-(b); Exhs. A-C.) The claim, as attached to the FAC, was addressed to "Antioch Unified School District, Attn: Risk Management." (*Id.*, Ex. A.)

On August 13, 2025, Defendant demurred to the original complaint on the ground that Plaintiff failed to comply with the claim presentation requirements of the Government Claims Act (GCA), because the claim was addressed and delivered to the District's Risk Management Department rather than to the clerk, secretary, auditor, or governing body as required by Government Code section 915. On December 12, 2025, the Court sustained Defendant's demurrer with leave to amend, finding that Plaintiff should be given the chance to plead "additional facts regarding precise address, actual receipt and routing" of the claim, or facts otherwise demonstrating or excusing compliance with the GCA's claim-presentation requirements.

On January 14, 2026, Plaintiff filed a FAC which realleges the same claim-presentation facts as the original complaint and attaches the claim form itself, the certified-mail receipt, USPS delivery confirmation, and a printout of the District's website contact information. (FAC, ¶¶ 9(a)-(c); Exhs. A-D.) Defendant now demurs to the FAC on the same ground raised in the prior demurrer, arguing that these newly attached exhibits confirm rather than cure the defect, because they establish the claim was addressed and delivered only to the District's Risk Management Department.

Demurrer Standard

The role of a general demurrer is to test the legal sufficiency of a complaint. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) On demurrer, the court must liberally construe the complaint in the plaintiff or cross-complainant's favor. (Code Civ. Proc., § 452.) "A demurrer admit[s] all ... properly pleaded material facts." (*Nolte v. Cedars-Sinai Medical Center* (2015) 236 Cal.App.4th 1401, 1406.) However, the court does not "assume the truth of contentions, deductions or conclusions of law." (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967.)

"Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) For the Court to grant leave to amend after sustaining a demurrer, however, the plaintiff must "show a reasonable possibility of curing the defect in the complaint by amendment." (*Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 994.) The plaintiff bears "the burden of proving that an amendment would cure the defect." (*Ibid.*) When the court has already sustained a demurrer to a similar cause of action with leave to amend, and plaintiffs do not remedy the facial deficiencies, this

Court may “infer that the pleader has no additional allegations with which to make its claim certain and has already pleaded its case to best advantage” and conclude that permitting a further opportunity for amendment would be futile. (Cf. *Hills Transp. Co. v. Southwest Forest Industries, Inc.* (1968) 266 Cal.App.2d 702, 713-714.)

Judicial Notice

The District requests judicial notice of two matters: (1) Exhibit A, the June 26, 2024 government claim form and accompanying materials, together with the assertion that Plaintiff has never presented a claim to the District's clerk, secretary, auditor, or governing body (“Fact No. 1”), and (2) Exhibit B, this Court's December 12, 2025 order sustaining the demurrer to the original Complaint. Plaintiff opposes judicial notice of Exhibit A and Fact No. 1 only, arguing that while judicial notice may extend to the existence and content of the claim form, it does not extend to the District's characterization of what the document establishes, and that Fact No.1 is a disputed fact that is improper for judicial notice.

Defendant's request for judicial notice of Exhibit B is granted. (Evid. Code, § 452, subd. (d).)

As to Exhibit A, the Court reaches the same result it reached on the prior demurrer. A court may take judicial notice of the existence and content of a public record, but not of the truth of factual matters asserted within it, particularly where that truth is disputed. A public entity may properly ask the Court to notice that its own records do not reflect compliance with the claims-presentation statute. (*Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 376.) However, that is different from asking the Court to notice, as an adjudicated fact, that no statutorily-designated recipient ever received the claim. The Court granted judicial notice of Exhibit A's existence and content in the prior order and does so again, but again declines to notice the truth of Fact No. 1 to the extent it asks the Court to resolve the contested question of whether Plaintiff's claim was ever received by a statutory recipient.

Fact No. 1 derives from the declaration of Eileen Alterman. Nothing on the face of Exhibit A itself shows that the claim was never forwarded to or received by the clerk, secretary, auditor, or board. The claim form and mailing materials show only that the claim was addressed to "Attn: Risk Management" and delivered to an individual at the District's address on June 28, 2024 and stamped received by the District's Business

Services Department on July 1, 2024. What became of the claim after that delivery is not established by the document itself but by Alterman's account of the District's claims-handling process. That account may be true, but it is a declaration describing disputed events, not a source whose accuracy cannot reasonably be questioned, and its truth is not a matter for judicial notice.

Discussion

Plaintiff alleges that he suffered injuries due to the negligence of Defendant Antioch Unified School District employees or agents in failing to supervise students. There is no dispute that the school district is a public entity.

With certain exceptions not applicable here, “no suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented . . . until a written claim therefor has been presented to the public entity.” (Govt. Code §§ 905, 911.2, 945.4.)

Govt. Code section 915 provides:

(a) **A claim**, any amendment thereto, or an application to the public entity for leave to present a late claim **shall be presented to a local public entity by any of the following means:**

(1) Delivering it to the clerk, secretary or auditor thereof.

(2) **Mailing it to the clerk, secretary, auditor, or to the governing body at its principal office.**

(3) If expressly authorized by an ordinance or resolution of the public entity, submitting it electronically to the public entity in the manner specified in the ordinance or resolution. . . .

(e) **a claim**, amendment, or application **shall be deemed to have been presented in compliance with this section** even though it is not delivered or mailed as provided in this section **if, within the time prescribed for presentation thereof, any of the following apply:**

(1) **It is actually received by the clerk, secretary, auditor, or board of the local public entity.**

....

(Govt. Code, § 915, emphasis added.)

A complaint against a public entity must allege compliance with the GCA or circumstances excusing compliance. (*State v. Superior Court (Bodde)* (2004) 32 Cal.4th 1234, 1245.)

Plaintiff alleges he mailed a completed “Claim for Damage or Injury” form to Defendant, addressed to “Antioch Unified School District, Attn: Risk Management,” at the District's principal office at 510 G Street in Antioch, California. (FAC ¶ 9(a); Exhs. A-B.) The claim was sent by USPS certified mail and was delivered on June 28, 2024. (FAC ¶ 9(b); Exh. C.) The record does not indicate the claim was ever mailed or delivered by Plaintiff to Defendant's clerk, secretary, or auditor. (FAC ¶¶ 9(a)-(c).) The record does not indicate the claim was ever actually received by the clerk, secretary, auditor, or governing board of Defendant within the time period prescribed by law for presenting a claim. (*Id.*) Defendant argues this record is sufficient to show that, as a matter of law, Plaintiff did not comply with Government Code section 915 in presenting his claim to the District.

Defendant argues in its demurrer that Plaintiff did not comply with the requirements of the Government Code for claim presentation and that its demurrer should be sustained without leave to amend.

The facts of this case are similar to those presented in *DiCampli-Mintz v. County of Santa Clara* (2012) 55 Cal.4th 983. In that case, the plaintiff was injured at a medical center operated by the County of Santa Clara, a public entity. (*Id.* at 987.) Plaintiff's counsel prepared letters regarding plaintiff's claim, addressed to the hospital's risk management department and the treating physicians, and personally delivered them to an employee of the medical staffing office in the hospital's administration building. (*Id.*) The letters, though, were never mailed, personally served on, or delivered to the county clerk, or the clerk of the board, or any other statutorily designated acceptable recipients denoted in Government Code section 915. (*Id.*) A letter was received, though, by the County's risk management department, and a member of the County's risk management team had a detailed telephone conversation with plaintiff's counsel regarding the plaintiff's claim. (*Id.* at 988.) During the phone call, the risk management department acknowledged receipt of counsel's letter, discussed certain procedural

and substantive aspects of the plaintiffs claim, and provided the County's attorney's contact information to plaintiff's counsel. (*Id.*) The risk management team member did not, "mention that the letter failed to satisfy section 915's delivery requirements." (*Id.*) Further, the "[p]laintiff never received written notice that her claim was untimely or presented to the wrong party." (*Id.*)

Here, as in *DiCampli-Mintz*, Plaintiff's claim was addressed and delivered to Defendant's risk management department rather than to any statutorily-designated recipient under section 915, and the record reflects only that the claim was received by an unidentified individual at the District's mailing address. (FAC, ¶ 9b; Ex. C.) Thus, as in *DiCampli-Mintz*, Plaintiff did not fulfill the claim presentation requirements of section 915.

Plaintiff's opposition characterizes the claim as having been "received and date-stamped by District personnel," and argues this supports "at minimum . . . an inference of actual receipt." But the FAC does not allege that the claim was received by anyone other than Risk Management. It is receipt by a statutorily-designated recipient that is required, and neither the FAC's allegations nor its exhibits support an inference that this occurred.

On demurrer, a public entity may properly point to its own records, including a claim form presented by the plaintiff, and argue that those records do not reflect compliance with the GCA's claim presentation requirements. (*Gong, supra*, 226 Cal.App.4th at 376.) That is not a request that the Court resolve a disputed fact by judicial notice, but a challenge the plaintiff must respond to, either by alleging facts showing the claim was in fact properly presented or received, or by alleging some other basis for compliance or excuse. Plaintiff stated in his opposition that he could, if given leave, "plead additional facts regarding precise address, actual receipt and routing." (Opp. to First Demurrer, 11:12-13.) The Court gave Plaintiff leave to amend to allege such facts. Having told the Court he could plead those facts, Plaintiff cannot now argue that he should not be required to do so.

Plaintiff additionally argues, as did the plaintiff in *DiCampli-Mintz* in the trial court, that Defendant waived the requirements of Government Code section 915 because it failed to give notice of any deficiency under Government Code section 910.8. (MPA, pp. 2-3.) Plaintiff is making a "substantial compliance" argument in substance, which

was rejected in *DiCampli-Mintz*.

Plaintiff's waiver argument relies on statutes that presuppose a statutorily-designated recipient has already received the claim. (See Gov't Code § 910.8; *DiCampli-Mintz, supra*, 55 Cal.4th at 988, fn. 5.) As discussed above, there is no allegation, nor any judicially noticeable fact, that a statutorily-designated person received Plaintiff's claim. Nor does Plaintiff allege that the District did anything to induce the misdirection of his claim. Plaintiff's first opposition characterized the District's position as a "preference" that claims be sent to Risk Management, but he did not allege then, and does not allege now, that the District ever directed him to address the claim that way or said that doing so was sufficient.

Plaintiff contends that *DiCampli-Mintz* is distinguishable because the claim in that case was sent to a "remote sub-department," whereas his claim was delivered to the District's main office where the Board sits. The distinction fails. The letter in *DiCampli-Mintz* was received not only by the hospital's risk management office but also by the Santa Clara County Risk Management Department, a department within the County that "deals with legal claims against the County." (*DiCampli-Mintz, supra*, 55 Cal.4th at 988, fn. 4.) The California Supreme Court held that "any differences are irrelevant because plaintiff failed to properly present her letter to a statutorily designated person, nor did any such designee actually receive the letter." (*Ibid.*) To the extent Plaintiff argues that delivery to the address where the Board sits supports an inference that the Board actually received the claim, the Court disagrees. The claim was addressed "Attn: Risk Management." (FAC, Exhs. A-B.) An inference that the claim nonetheless made its way to the Board depends on the assumption that District personnel receiving a misdirected claim would route the claim to a statutory recipient. *DiCampli-Mintz* rejected that reasoning, holding that such an approach "inappropriately shifts responsibility for filing a claim with the proper official or body from the claimant to the public entity." (*DiCampli-Mintz, supra*, 55 Cal.4th at 996-997.)

Leave to Amend

The burden is on plaintiff to show in what manner plaintiff can amend the complaint, and how that amendment will change the legal effect of the pleading. (*Moore v. Centrelake Medical Group, Inc.* (2022) 83 Cal.App.5th 515, 537.)

The opposition recites the general standard governing leave to amend, but does not

identify additional facts that Plaintiff proposes to allege in a second amended complaint beyond "further facts demonstrating substantial compliance, actual receipt, and the District's waiver of any defect in the claim's presentation." (See Opp. p. 3:14-16.) These are the legal conclusions Plaintiff hopes to establish, but Plaintiff does not say what the facts would be. Plaintiff has therefore not carried his burden of showing a reasonable possibility that the defect can be cured.

Because Plaintiff has already had one opportunity to amend, the Court infers that he has pleaded this theory to best advantage and finds that further leave to amend would be futile.

Disposition

For the foregoing reasons, the demurrer is **sustained without leave to amend**.

If Plaintiff contests this tentative ruling and requests further leave to amend, he should be prepared to identify at the hearing the specific facts he would allege to state a viable cause of action against the District as a public entity.

8. 9:00 AM CASE NUMBER: C25-00983
CASE NAME: DARCELL KELLY VS. EDDIE DRUMMER
*HEARING ON MOTION IN RE: INTERLOCUTORY JUDGMENT OF PARTITION BY SALE
FILED BY: KELLY, DARCELL
TENTATIVE RULING:

The court on its own motion **continues** the hearing on this matter to **August 7, 2026**, at 9:00 a.m., in Department 32. Plaintiff Darcell Kelly AKA Darcell Purefoy shall file the separate statement in support of the motion for summary judgment regarding an interlocutory judgment of partition by sale, by July 29, 2026.

9. 9:00 AM CASE NUMBER: C25-03386
CASE NAME: CECILY TAYLOR VS. STEVE SMITH
*HEARING ON MOTION IN RE: SET ASIDE DEFAULT AS TO STEVE SMITH
FILED BY: SMITH, STEVE
TENTATIVE RULING:

The unopposed motion of Defendant Steve Smith to set aside default pursuant to CCP Section 473(b) is **granted**. Defendant must file and serve his Answer or other responsive pleading within 15 days of this ruling, i.e., within 15 days of July 17, 2027.